

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202100561438CUOE: Ibarra vs. Chuy & Sons

06/24/2026 in Department 44

Motion to Compel Defendant GJ Farms Inc to Provide Responses to Plaintiffs Special Interrogatories Set One and Request for Monetary Sanctions of \$4085

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Compel Defendant G.J. Farms, Inc. to Provide Responses to Plaintiff’s Special Interrogatories (Set One) and Request for Sanctions \$4,085 (*unopposed*)

Tentative Ruling:

Plaintiff’s Unopposed Motion to Compel Defendant G.J. Farms, Inc. to Provide Responses to Plaintiff’s Special Interrogatories (Set One) and Request for Sanctions \$4,085 is granted.

Defendant did not respond to properly served discovery that seeks information reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., §§ 2017.010, 2030.260, subd. (a), 2030.290, subd. (a).) Such failure to respond constitutes a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d).) Despite no requirement to meet and confer due to Defendant’s failure to respond, Plaintiff’s counsel attempted on numerous occasions to avoid this motion. To date, no responses have been received.

Counsel’s hourly rate is \$1,150 and she alleges she has spent “more than 2.5 hours” on this matter. Although sanctions of \$4,085 are sought, the math does not add up: [\$1,150 x 2.5=\$2,875] + \$60=\$2,935. Additionally, the Court finds that the hourly rate is unreasonably

high based on the Court's familiarity with reasonable rates approved in the local community. Counsel was admitted to practice in December 2003 and has 22 years' experience. A reasonable hourly rate for a 22-year lawyer in Ventura County is \$700. The Court also finds that one and a half hours is a reasonable amount of time to prepare the documents in a motion to compel initial responses. The motion is unopposed. Consequently, the Court orders Defendant and its counsel of record, William H. Schultz of Schultz Law Firm to pay \$1,110 in sanctions, calculated as follows: [$\$700 \times 1.5$] + \$60 (filing fee).

Defendant shall provide verified responses, without objections, within 20 days. Sanctions shall be paid within 20 days as well.

Counsel for Plaintiff is ordered to give notice of the Court's ruling.